

23PSCV02124 23PSCV02124

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 23PSCV02124 Hearing Date: July 23, 2026 Dept: G

Plaintiff

City of Diamond Bar's Motion for Appellate Attorney's Fees

Respondent:

Defendants John Zhong and Catherine Li

Defendants

John Zhong and Catherine Li's Amended Motion for Leave to File a
Cross-Complaint

Respondent:

Plaintiff City of Diamond Bar

TENTATIVE

RULING

Plaintiff

City of Diamond Bar's Motion for Appellate Attorney's Fees is GRANTED in the
total amount of \$32,118.00.

Defendants

John Zhong and Catherine Li's Amended Motion for Leave to File a
Cross-Complaint is DENIED.

BACKGROUND

This

is a nuisance abatement action. Defendants

John Zhong and Catherine Li (collectively, Defendants) are the alleged owners of real property within the boundaries of plaintiff City of Diamond Bar (the City). Beginning in March 2022, Defendants allegedly used their real property for short-term rentals in violation of Diamond Bar Municipal Code section 22.08.030. Defendants allegedly refused to comply despite the City's notices of violation of the ordinance.

On July 14, 2023, the City filed the Complaint, alleging causes of action for (1) public nuisance and (2) public nuisance per se.

On September 11, 2023, the City filed a notice of pendency of action (lis pendens). On October 9, 2023, the court denied Defendants' motion to expunge lis pendens.

On December 18, 2023, Defendants filed a Cross-Complaint. On January 17, 2024, the court struck the Cross-Complaint without prejudice.

On August 1, 2025, the City filed a motion for appellate attorney's fees. On August 4, 2025, Defendants filed the opposition (labeled as an objection). On September 24, 2025, the City filed the reply, and Defendants filed a supplemental opposition. On September 25, 2025, the City objected to the supplemental opposition, and on September 29, 2025, Defendants filed a response to the objection. On June 22, 2026, Defendants filed a revised opposition (labeled as an objection), and on July 10, 2026, the City filed a revised reply.

On June 22, 2026, Defendants filed an amended motion for leave to file a cross-complaint. On July 10, 2026, the City filed the opposition, and Defendants filed the reply.

This case is set for a case management conference (further), a continued hearing on the motion for attorney's fees, and a hearing on the amended motion for leave to file a cross-complaint on July 23, 2026.

OBJECTIONS

The

City objects to the supplemental opposition Defendants filed against the motion for appellate attorney's fees. The court did not grant Defendants leave to file a supplemental opposition to the motion for appellate attorney's fees. Thus, the court sustains the City's objection and does not consider the supplemental opposition.

Defendants

object to the July 10, 2026 declaration of Eric P. Markus. "The general rule of motion practice . . . is that new evidence is not permitted with reply papers." (Jay v. Muhaffey (2013) 218 Cal.App.4th 1522, 1537.) However, "the trial court had discretion whether to accept new evidence with the reply papers," and "points raised for the first time in a reply brief will ordinarily not be considered." (Id. at 1538, cleaned up, emphasis added.) The supplemental declaration and attached exhibit do not raise points for the first time; they clarify points previously made in the motion. Thus, the court overrules Defendants' objection.

The

City objects to Defendants objection, supra, interpreting it as an improper brief. The confusion is

understandable because Defendants label their briefs as "objections." (See, e.g., 7/10/2026 Obj., p. 1.) However, the court interpreted Defendants'

June 22, 2026 "objection" as the revised opposition, which it authorized at the June 11, 2026 hearing, and interpreted the July 10, 2026 "objection" as a proper objection. (See 6/11/2026 Min. Order, authorizing the parties to provide revised briefs after the court found Defendants' original opposition contained hallucinated authorities.) In any event, the court did not consider the arguments contained in Defendants' July 10, 2026 objection, only the objections themselves, and the court ultimately overrules Defendants' objection. Thus, the court overrules the City's objection.

REQUEST

FOR JUDICIAL NOTICE

The

City requests that the court take judicial notice of its own records and of a section of the City's municipal code. The court may take judicial notice of the records of any California court or any court of record in the United States.

(Evid. Code, § 452, subd. (d).) The court may also take judicial notice of regulations and legislative enactments issued by a public entity in the United States. (Evid. Code, § 452, subd. (b).)

Thus,
the court takes judicial notice of the requested records.

Defendants

also request that the court take judicial notice of its own records. As stated above, the court may take judicial notice of the records of any California court, including its own. (Evid. Code, § 452, subd. (d)(1).)

Thus,
the court takes judicial notice of the requested records.

MOTION FOR APPELLATE ATTORNEY'S FEES

The

City moves for an award of its appellate attorney's fees in the amount of \$32,118.00. For the following reasons, the court
GRANTS
the motion for appellate attorney's fees.

Legal
Standard

As

in trial court litigation, attorney's fees on appeal are recoverable if authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10); see *People ex rel. Cooper v. Mitchell Brothers' Santa Ana Theater* (1985) 165 Cal.App.3d 378, 387.) Statutory authorization for the recovery of attorney's fees incurred in trial court proceedings necessarily includes attorney's fees incurred on appeal. The statute need not expressly authorize fees on appeal. (*Morcos*

v. Bd. of Retirement (1990) 51 Cal. 3d 924, 927, stating that “fees, if recoverable at all—pursuant to either statute or parties’ agreement—are available for services at trial and on appeal,” internal quotation omitted.) Unless the appellate court orders otherwise, it is within the trial court’s sound discretion to entertain a request for appellate attorney’s fees notwithstanding the absence of specific direction from the appellate court. (See Cal. Rules of Court, rule 8.278(d)(2); *Butler-Rupp v. Lourdeaux* (2007) 154 Cal.App.4th 918, 924.) If the appellate court’s opinion is silent on the subject of attorney’s fees, the appellate judgment does not preclude a party from seeking them, and the issue of entitlement to fees on appeal will be determined on remand by motion made in the trial court pursuant to California Rules of Court, rule 3.1702. (Cal. Rules of Court, rule 8.278(d)(2); see *Gale v. Super. Ct.* (2004) 122 Cal.App.4th 1388, 1399.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (*Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (*Vo v. Las Virgenes Municipal Water Dist.* (2000) 79 Cal.App.4th 440, 446.)

“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate [attorney’s] fee award.” (*Margolin v. Regional Planning Com.*, *supra*, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorney’s fees award.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services,

ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “[P]aralegal fees may be awarded as attorney’s fees if the trial court deems it appropriate. . . .” (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where

a party is challenging the reasonableness of attorney’s fees as excessive that party must “attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) “[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Id. at 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Ibid.)

A

“court should defer to the winning lawyer’s professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker.” (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel’s hourly rates, the court will deem an attorney’s hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

To

decide the City's motion for appellate attorney's fees, the court must determine (1) whether the City is a prevailing party entitled to costs, and if it is, (2) whether the motion is premature, and if not, (3) whether the cost award includes the City's attorney's fees and, if it does, then the court determines the attorney's fee award by considering (4) the reasonableness of the claimed hours and (5) the reasonableness of counsel's rates.

Prevailing
Party

"[A]

prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) Regarding costs on appeal, "[t]he prevailing party is the respondent if the Court of Appeal affirms the judgment without modification or dismisses the appeal. The prevailing party is the appellant if the court reverses the judgment in its entirety." (Cal. Rules of Court, rule 8.278(a)(2).)

Here,

Defendants appealed this court's issuance of a preliminary injunction. (See 12/14/2023 Notice of Appeal, ¶ 1.) Defendants' appeal was unsuccessful. The Court of Appeal affirmed this court's order. (See 6/23/2025 Remittitur, p. 8, holding, "The order is affirmed. The City is entitled to its costs on appeal."; see also Cal. Rules of Court, rule 8.278(a)(2).) Thus, the court finds that the City is the prevailing party entitled to costs on appeal.

Timing of the Motion

"A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court-including attorney's fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case. . . ." (Cal. Rules of Court, rule 3.1702(b)(1).) Rule 8.104 deals with the time to appeal, and rule 8.108 deals with extending the time to appeal. Rule 8.104 specifies that an appeal must be

filed “on or before” the dates of certain events; it does not prohibit an appeal from being filed too early, only stating that it should not be filed too late. (Cal. Rules of Court, rule 8.104.)

Here, the City filed its motion for attorney’s fees on August 1, 2025. (See Mot. Atty’s Fees, p. 1.) The court finds the motion is filed timely under Rule 3.1702 because the City filed the motion before any of the events specified in Rule 8.104. Thus, it is appropriate for the court to consider the motion for attorney’s fees before the entry of final judgment.

As a matter of fairness, however, the court notes its authority to control its own process to make it conform to justice. (See Code Civ. Proc., § 128, subd. (a)(8).) If it is in the furtherance of justice, then the court will not require that Defendants pay the attorney’s fee award until after the court renders a final judgment. But even if the court defers Defendants’ obligation to pay attorney’s fees as part of the costs on appeal, the court need not wait to decide the underlying issue of costs on appeal until after final judgment. The costs the City incurred on appeal in the past will not change in the future, so the court may decide the issue of costs on appeal now.

Attorney’s Fees as Part of the Cost Award

“With regard to an award of attorney fees in litigation, California generally follows what is commonly referred to as the American Rule, which provides that each party to a lawsuit must ordinarily pay his or her own attorney fees.” (Tract 19051 Homeowners Assn. v. Kemp (2015) 60 Cal.4th 1135, 1142, cleaned up.) “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs. . . .” (Code Civ. Proc., § 1021.) Section 1033.5 lists categories of recoverable costs, including “Attorney’s fees, when authorized by . . . (A) Contract[,] (B) Statute[,] [or] (C) Law.” (Code Civ. Proc., § 1033.5, subd. (a)(10).)

Here, the Diamond Bar Municipal Code provides, “Attorney’s fees . . . shall be awarded to the prevailing party in any action

taken by the city to abate a public nuisance. . . .” (Diamond Bar Mun. Code, § 1.04.010, subd. (e).) This case is explicitly an action by the City

to abate a public nuisance. (See Compl.,

pp. 5–6.) As stated above, the Court of

Appeal awarded the City its costs on appeal.

(See 6/23/2025 Remittitur, p. 8, stating, “The City is entitled

to its costs on appeal.”) Thus, the cost

award may include attorney’s fees as part of the cost award under Code of Civil

Procedure section 1033.5 because it is authorized by the Diamond Bar Municipal

Code.

Reasonableness

of the Claimed Hours

The

City substantiated 122.3 hours from counsel in this litigation. A verified fee bill is “prima facie evidence

the costs, expenses and services listed were necessarily incurred.” (Hadley v. Krepel (1985) 167

Cal.App.3d 677, 682.) However, counsel

bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC

(2020) 48 Cal.App.5th 240, 247.) Fees

should be denied where the court finds the tasks unreasonable or unnecessary

since “padding in the form of inefficient or duplicative efforts is not subject

to compensation.” (Ketchum v. Moses

(2001) 24 Cal.4th 1122, 1132.)

Here,

the City’s counsel claims 122.3 hours of legal work and provides their itemized

fee bill. (Litvak Decl., ¶ 9; Litvak

Decl., Exh. B.) Upon review of the

invoice, the court finds the hours spent on the appeal appear reasonable.

For

their part, Defendants did not attack the City’s itemized billing with evidence

that the fees claimed are not appropriate.

(Orig. Opp. Atty’s Fees, pp. 2–11; Rev’d Opp., pp. 2–15.) The original opposition argues at length that

the City’s claimed hours are excessive citing claimed authorities, almost all of

which are misquoted or do not exist. The

revised opposition focuses more on whether the City is entitled to attorney’s

fees at all as opposed to specific challenges to the City’s fee bill. Defendants’ arguments do not overcome the

prima facie evidence of the City’s fee bill.

Therefore,
the City substantiated all 122.3 hours from counsel in this litigation.

Importantly,
the court must note that fabricated citations and erroneous statements of law
require a court to spend excessive time on the immediate proceeding to attempt
to track down fabricated legal authority and then to research the issues
presented without assistance. (See
Noland v. Land of the Free, L.P. (2025) 114 Cal.App.5th 426, 447–448,
paraphrased.) Here, Defendants' provided
false and non-existent citations to legal authority. Further, the court does not excuse
Defendants' misrepresentations about relevant authorities based on their lack
of legal representation. (Rancho
Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th
252, 262, noting that "[w]hen a litigant is appearing in propria persona, [they
are] entitled to the same, but no greater, consideration than other litigants
and attorneys.")

Defendants
are admonished that before filing any future document with the court, Defendants
"must carefully check every case
citation, fact, and argument to make sure that they are correct and
proper. [They] cannot delegate that role
to AI, computers, robots, or any other form of technology." (Noland, supra, at 446, cleaned
up.) The court will not accept or
tolerate Defendants' future citation to hallucinated authorities as exhibited
in their original opposition.

Reasonableness
of Counsel's Rates

The
City established the reasonableness of the requested hourly rates. Counsel charges the City \$250 for attorney
work and \$185 for paralegal work, which is below the rates charged by lawyers
with similar skill and experience.
(Litvak Decl., ¶ 6.) Defendants
do not challenge the discounted government rate. (Orig. Opp. Atty's Fees, p. 9; see
generally Rev'd Opp. Atty's Fees, failing to argue against the government
rate.) The City's attorneys spent 109.5

hours at a rate of \$250, which totals \$27,375.00 for attorney work. The City's paralegal spent 12.8 hours at a rate of \$185, which equals \$2,368.00 for paralegal work. Thus, the appropriate award of attorney's fees is \$29,743.00 for the appeal. Additionally, counsel spent 9.5 hours at a rate of \$250, which equals \$2,375.00 for the motion.

Therefore,
the appropriate award of attorney's fees is \$32,118.00.

Accordingly,
the court GRANTS the motion for attorney's fees in the amount of \$32,118.00.

The court elects to exercise its discretion under Code Civ. Proc., § 128, subd. (a)(8) with respect to the award of attorney's fees. The court will not require that Defendants pay the attorney's fee award until after the court renders a final judgment.

LEAVE
TO FILE CROSS-COMPLAINT

Defendants
seek leave to file a cross-complaint.
For the following reasons, the court DENIES the motion for leave to file a cross-complaint.

Legal
Standard

Pursuant
to Code of Civil Procedure section 428.50, a party is entitled to "file a cross-complaint against any of the parties who filed the complaint or cross-complaint against [them] before or at the same time as the answer to the complaint or cross-complaint." (Code Civ. Proc., § 428.50, subd. (a).)
Furthermore, "[a]ny other cross-complaint may be filed at any time before the court has set a date for trial."
(Code Civ. Proc., § 428.50, subd. (b).)
If a cross-complaint is not filed within these guidelines, it may only

be filed with leave of the court, who may grant it “in the interest of justice at any time during the course of the action.”
(Code Civ. Proc., § 428.50, subd. (c).)

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cross-complaint is compulsory when a related cause of action existed at the time of serving the defendant's answer to the complaint. (Code Civ. Proc., § 426.30, subd. (a); see also *Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.) A “[r]elated cause of action” means “a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.” (Code Civ. Proc., § 426.10, subd. (c).) Leave must be granted to file a compulsory cross-complaint when the defendant is acting in good faith. (Code Civ. Proc., § 426.50.)

“[W]hat

constitutes ‘good faith’—or lack of it—under Code of Civil Procedure Section 426.50 must be determined in light of and in conformity with the liberality conferred upon the trial courts by the section and by prior law. . . . [T]his principle of liberality requires that a strong showing of bad faith be made in order to support a denial of the right to file a cross-complaint under this section.” (Foot’s Transfer & Storage Co. v. Super. Ct. (1980) 114 Cal.App.3d 897, 902.) A determination of bad faith may be premised on “substantial injustice or prejudice” to the opposing party. (Id. at 903; see also *Gherman v. Colburn* (1977) 72 Cal.App.3d 544, 560, fn. 9, stating that leave to file a cross complaint was properly denied where a defendant’s motion “was merely a tactical strategic maneuver to deprive plaintiffs of a right to a jury trial.”)

Discussion

The

court previously found that it “cannot determine . . . the merit of Defendants’ motion without an explanation of the subsequently discovered additional facts and without a copy of the proposed cross-complaint.” (8/25/2025 Order Re: Court’s Final Tentative Ruling, p. 2, internal quotation omitted.)

Here,

as with the previous motion for leave to file a cross-complaint, Defendants provide a declaration with a proposed cross-complaint but fail to include newly discovered facts that serve as a basis for the pleading. (See generally Amend. Mot. for Leave, Zhong and Li Decl.) Even if the court interprets the allegations Defendants included in their declaration as newly

discovered facts, the Defendants knew these facts before they filed their Answer. (See Amend. Mot. for Leave, Zhong and Li Decl., ¶¶ 3–6; see also Compl., ¶¶ 25–27.) Defendants contend, “knowledge of facts before the Answer does not, by itself, establish bad faith.” (Reply for Leave, p. 2, capitalization changed.) Even so, knowledge of these facts before the Answer demonstrates that such facts were not newly discovered. As such, these facts cannot serve as the basis for a late-filed cross-complaint.

Therefore,
the court finds Defendants failed to provide a reason and good cause for the court to accept Defendant’s late-filed cross-complaint.

Accordingly,
the court DENIES the motion for leave to file a cross-complaint.

CONCLUSION

For
these reasons, the motion for appellate attorney’s fees is GRANTED in the total amount of \$32,118.00, but the court will not require defendants John Zhong and Catherine Li to pay this amount until the court renders a final judgment.

The
amended motion for leave to file a cross-complaint is DENIED.